

TENTATIVE RULING

Case: JPMorgan Chase Bank, N.A. v. Bustamante
Case No. CV2024-1191

Hearing Date: July 28, 2026 **Department Thirteen** **9:00 a.m.**

Motion to be relieved as counsel:

Christopher J. Peters of The Fullman Firm, P.C.'s unopposed motion to be relieved as counsel for defendant Emilio Bustamante is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client.** (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial setting conference:

Parties are **DIRECTED TO APPEAR** for the trial setting conference.

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc.**
Case No. CV2021-0289

Hearing Date: **July 28, 2026** **Department Thirteen** **9:00 a.m.**

The Court, in its discretion, considers plaintiff Benjamin Perez’s untimely opposition. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”]; Janfaza decl., ¶¶ 4-12, Exhibit A.)

Defendants Vineshwar K. Goundar and S.A.V. Texas, LLC’s motion to compel plaintiff’s attendance at deposition is **DENIED**. (Code Civ. Proc., § 2025.010 et seq.) This discovery motion was not set to be “heard on or before the 15th day, before the date initially set for the trial of the action.” (Code Civ. Proc., § 2024.020, subd. (a).) Trial is set for August 11, 2026, requiring any discovery motions to be heard on or before July 27, 2026. (*Ibid.*; Janfaza decl., ¶¶ 16-22 [Defendant’s counsel had the opportunity to depose plaintiff at a noticed deposition on April 21, 2026, because plaintiff appeared personally with a laptop and cell phone for his attorney. Defense counsel refused to allow plaintiff’s attorney to appear remotely, and plaintiff would not go forward without his counsel.]])

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.